PROPERTY SCENARIO: ILLEGAL LAND ENCROACHMENT, BOUNDARY DISPUTE & TRESPA

FACTUAL MATRIX & DISPUTE: A neighbor or trespasser illegally knocks down boundary pillars, occupies agricultural or residential plot, or constructs an unauthorized wall on vacant land belonging to a registered owner.

LEGAL STANDING & WHO IS IN THE RIGHT: The registered titleholder is legally in the right. The trespasser commits both a civil tort and cognizable criminal offences.

STATUTORY SECTIONS SUPPORTING THE OWNER:

1. Criminal Remedies:

- Section 441 & 447 IPC / Section 329 BNS: Criminal Trespass. Whoever enters into or upon property in possession of another with intent to commit an offence or intimidate/insult/annoy.
- Section 427 IPC / Section 324 BNS: Mischief causing damage to property.
- Section 145 CrPC / Section 164 BNSS: Executive Magistrate powers to decide immediate possession and prevent breach of peace.

2. Civil Remedies:

- Section 5 & 6 Specific Relief Act, 1963: Recovery of specific immovable property. Under Section 6, any person dispossessed without due process of law can file summary suit within 6 months of dispossession irrespective of title disputes.
- Section 38 Specific Relief Act, 1963: Perpetual Injunction restraining trespasser from interfering with peaceful possession.
- Order XXXIX Rules 1 & 2 CPC: Immediate temporary status-quo or ad-interim injunction order.
- Demarcation & Revenue Survey: Application before local Tehsildar/Collector under State Land Revenue Code for official police-assisted boundary demarcation.

PROPERTY SCENARIO: TENANT NON-PAYMENT, HOLDING OVER & ILLEGAL EVICTION

FACTUAL MATRIX & DISPUTE: A residential or commercial tenant stops paying rent for months after the registered lease expires. The landlord cuts off water/power or locks the gate to force the tenant out. Tenant claims rights, landlord claims eviction.

LEGAL STANDING & RIGHTS:

1. Tenant's Default: The tenant has no legal right to remain without paying rent. Landlord has right to possession and mesne profits.
2. Landlord's Illegal Acts: A landlord CANNOT take the law into their own hands. Cutting off electricity, water, or locking premises without court order is illegal under Rent Control Acts and constitutes criminal wrongful restraint under Section 339 IPC / Section 126 BNS.
3. Lawful Procedure for Landlord:

- Section 106 Transfer of Property Act, 1882: Mandatory 15-day (residential) or 6-month (agricultural/manufacturing) Notice to Quit.
- Civil Suit for Eviction & Recovery of Arrears of Rent under Rent Control Act / Transfer of Property Act.
- Claim for Mesne Profits: Compensation under Order XX Rule 12 CPC for unauthorized use and occupation from date of expiry of tenancy.
- Landmark Precedent: Ramesh Chand Ardawatiya v. Anil Panjwani (2003) Supreme Court: Even a trespasser or unauthorized occupant in settled possession cannot be dispossessed by force; eviction must occur through due process of law.

PROPERTY SCENARIO: BUILDER DELAY, NON-DELIVERY & FLAT BUYER RIGHTS

FACTUAL MATRIX & DISPUTE: A homebuyer pays 90% of the flat consideration. The builder promises possession in 3 years but fails to deliver after 6 years, citing construction delays and demanding extra escalation charges.

LEGAL STANDING & WHO IS IN THE RIGHT: The homebuyer is in the right. Unilateral delay and one-sided clauses constitute unfair trade practice and breach of statutory duty.

STATUTORY SECTIONS SUPPORTING THE BUYER:

1. Section 18 Real Estate (Regulation and Development) Act, 2016 (RERA): If builder fails to complete or give possession in accordance with agreement for sale, buyer has absolute right to:
   - Full refund of paid amount with interest at prescribed rate (SBI MCLR + 2%); OR
   - Monthly interest for every month of delay till handover of lawful possession.
2. Consumer Protection Act, 2019 (Sections 34, 47, 58): Consumer Commission complaint for deficiency in service and unfair trade practice.
3. Insolvency and Bankruptcy Code, 2016 (IBC Section 7): Homebuyers are recognized as Financial Creditors.
4. Landmark Precedent: Pioneer Urban Land and Infrastructure v. Govindan Raghavan (2019) Supreme Court: One-sided terms in builder-buyer agreement cannot be enforced against homebuyer; buyer cannot be compelled to wait indefinitely for possession.